Foothill Yellow-legged Frog Status and Permitting

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Wildlife Diversity Program

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Presentation Overview

- Status of the Species in California
  - Status by genetic clade
- CDFW Take Authorization
  - General information
  - Determining the correct permit
    - Focus on scientific research, education, propagation, and management
  - Permit application processes
- Take Aways

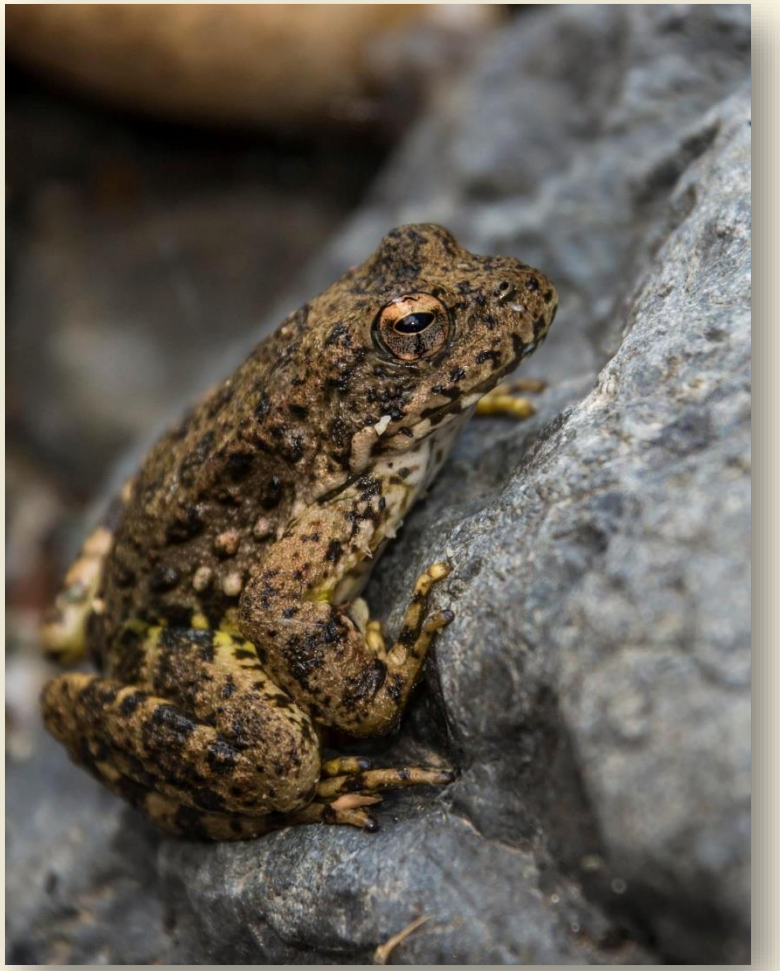


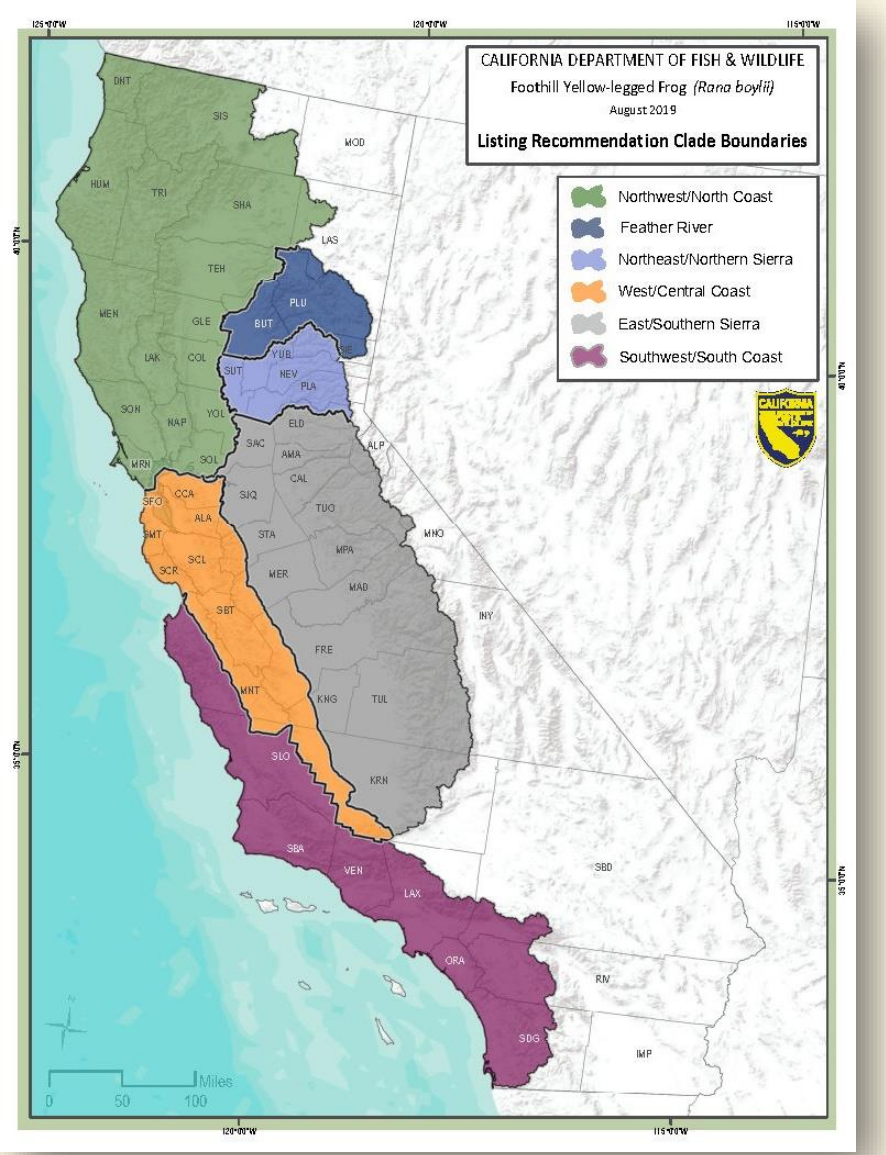
Photo credit: Isaac Chellman, CDFW

Status in California

CESA listed on 3/10/20, ESA listed on 8/29/23

- By genetic clade vs rangewide, based on Peek (2018) and McCartney-Melstad et al. (2018)

- North Coast (green)
  - CESA & ESA: Not listed; CA Species of Special Concern (SSC)
- Central Coast (orange)
  - CESA: Endangered, ESA: Threatened
- South Coast (magenta)
  - CESA & ESA: Endangered
- Feather River (dark blue)
  - CESA & ESA: Threatened
- Northern Sierra (medium blue)
  - CESA: Threatened, ESA: Not listed
- Southern Sierra (gray)
  - CESA & ESA: Endangered



Source: CDFW (2019) FYLF Status Review

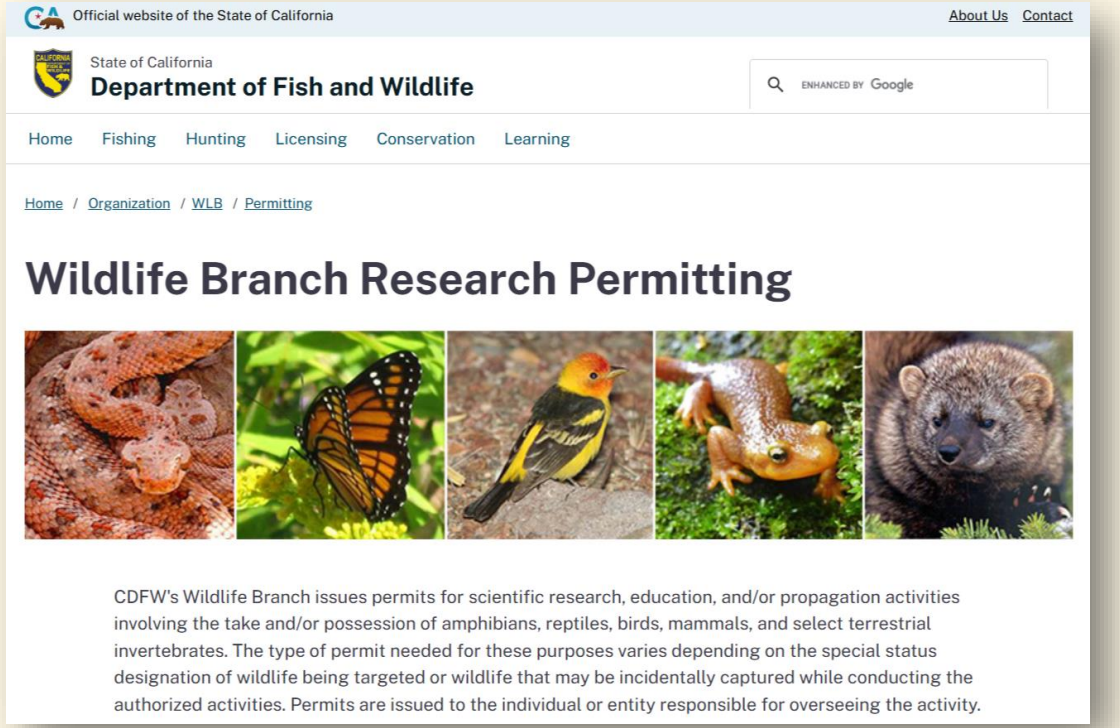
CDFW Take Authorization

GENERAL INFORMATION

- Fish and Game Code (FGC) § 86: **"Take"** is defined as hunt, pursue, catch, capture, kill, or attempt to do so
  - Does not include "harm" and "harass" like the ESA definition
- Take, for any reason, of fish and wildlife in California is prohibited without written authorization from CDFW
  - Typically, a permit or license
  - Excludes some terrestrial invertebrates
- The **purpose** of the take and a species' regulatory **status** are the two primary determinants of which type of authorization is required
- **Possession** alone of **native** fish and wildlife may require CDFW authorization

Choosing the Correct Permit

SCIENTIFIC RESEARCH, EDUCATION, AND PROPAGATION/MANAGEMENT



https://wildlife.ca.gov/Explore/Organization/WLB/Permitting

ISSUED BY WILDLIFE BRANCH

- CESA Threatened, Endangered, and Candidate Species
  - Memorandum of Understanding (MOU)* or Letter Permit, pursuant to FGC § 2081(a)
  - All FYLF clades except North Coast
- No Formal Listing Status
  - Scientific Collecting Permit (SCP), pursuant to FGC § 1002 and California Code of Regulations Title 14 § 650
  - FYLF North Coast clade
  - Includes non-native species

* MOUs are also issued for take of fully protected species, pursuant to FGC § 3511 (birds), § 4700 (mammals), § 5050 (herps), § 5515 (fish)

Other Take Permits

ISSUED BY REGIONAL OFFICE WITH JURISDICTION OVER THE PROJECT

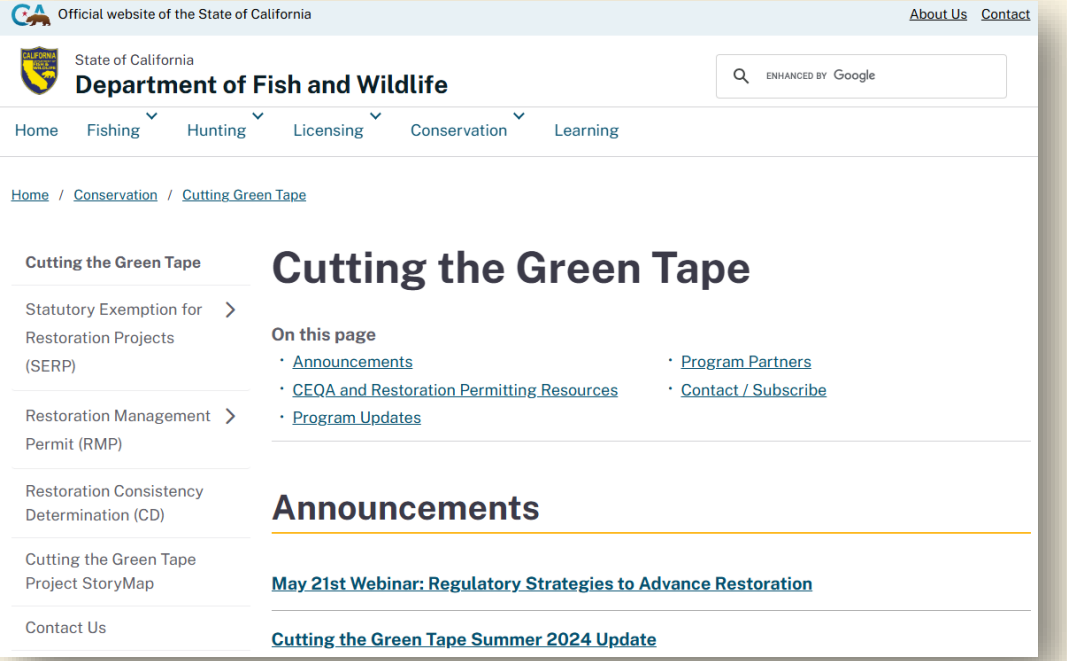
- CESA Incidental Take Permits
- CESA Consistency Determinations
- Natural Community Conservation Plan Permits
- Voluntary Local Agreements
- Safe Harbor Agreements

https://wildlife.ca.gov/Conservation/CESA/Permitting

Habitat Restoration/Management Projects

NEW CUTTING THE GREEN TAPE PROGRAM

- Restoration Management Permit
  - Habitat and species restoration projects
  - Qualification criteria in FGC § 1671
    - Restoration primary purpose, net benefit, etc.
  - Five authorizations in one permit
    - Lake and Streambed Alteration Agreement, SCP, CESA, Native Plant Protection Act, and Fully Protected Species MOU
- Habitat Restoration and Enhancement Act
  - Small-scale, voluntary projects
  - Exempt from CESA take permit



https://wildlife.ca.gov/Conservation/Cutting-Green-Tape

Scientific Collecting Permits

- Take Coverage
  - Cannot be used for take of CESA protected or fully protected species
  - Required for incidental take during covered activities (bycatch)
  - Required for possession (not just “take”)
- Permit Types
  - General Use: streamlined, inexpensive, but **extremely limited**
    - Research and educational activities involving **common species** within a **single CDFW review program** (Inland Fisheries, Marine, or Terrestrial Wildlife) using **standardized methods** with lower risk of accidental injury or mortality.
  - Specific Use: everything else
  - Student (1-year term); Individual or Entity (3-year term)

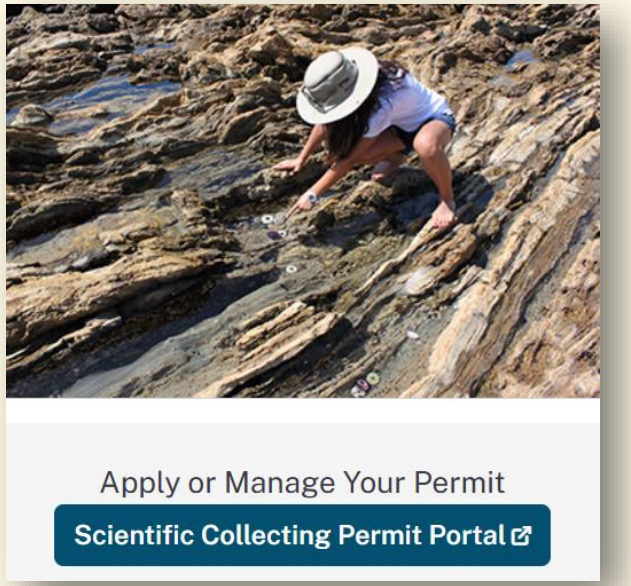
Broad Definition of Propagation

- “Propagation" means captive breeding, captive rearing, and **other activities that help sustain or increase wildlife populations** for scientific, conservation, management, or educational purposes, such as
  - **Removal of non-native, invasive, or detrimental wildlife** to improve or restore ecosystem or habitat conditions, or otherwise enhance the sustainability of native wildlife or other species.
  - Management responses necessary to prevent catastrophic wildlife population losses from drought, mudslides, wildfires, disease outbreaks, and other natural or man-made disasters, or to capture, **temporarily possess, and relocate wildlife to avoid harm or mortality in connection with otherwise lawful activities**.

SCP Application

- Consult Guidance
  - SCP FAQ on Wildlife Branch Permitting website
  - Pre-Application Guide on License and Revenue Branch (LRB) website
- Create Login ID through LRB SCP Portal
- Choose Student, **Individual**, or Entity Permit
  - Individual SCP goes with you, Entity SCP stays with employer
- Select General or **Specific Use** Permit
  - General Use cannot be used for SSC (e.g., FYLF)
- Provide detailed take request through Portal
- Pay both fees: application and issuance
- Submit questions to:

  TerrestrialWildlifeSCPs@wildlife.ca.gov

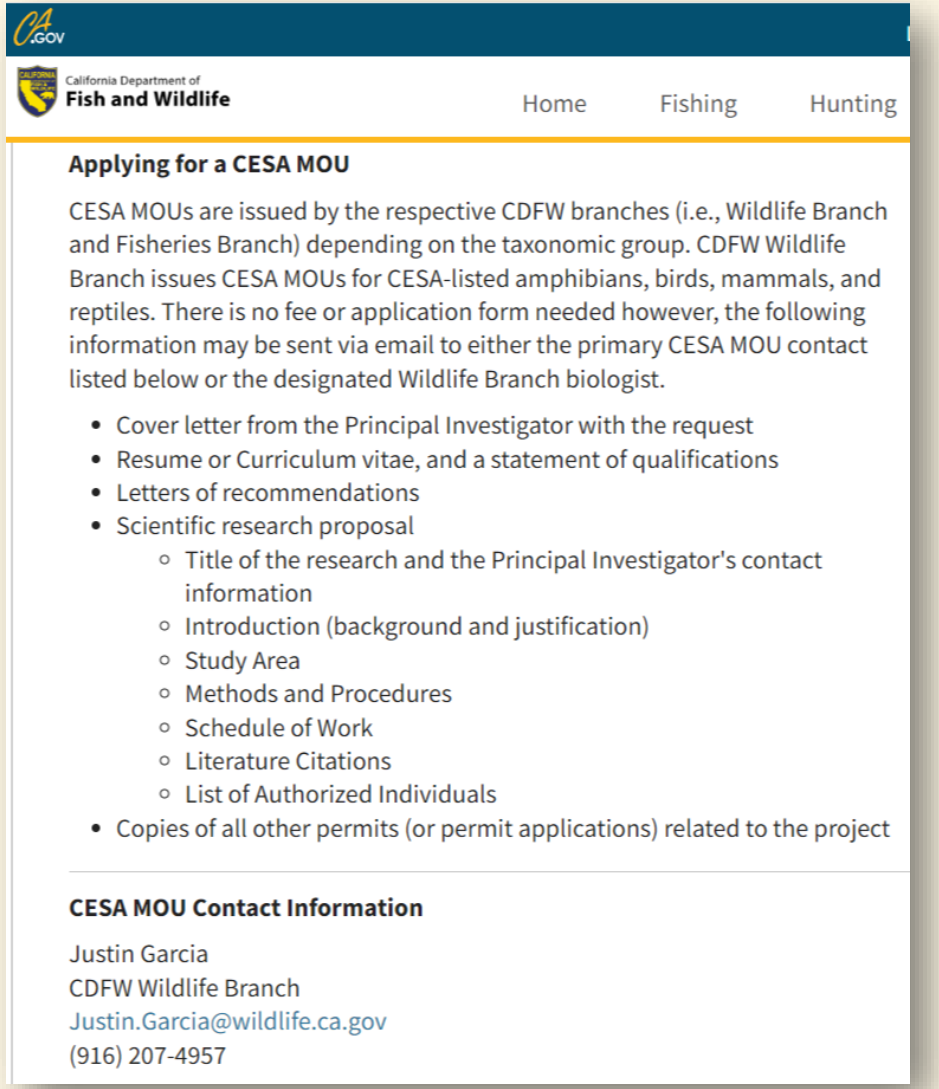


https://wildlife.ca.gov/Licensing/Scientific-Collecting

CESA MOU Application

- No application portal or fees
- Guidance on Wildlife Branch Permitting site
- Best practices
  - Be as comprehensive as possible to minimize confusion and need for amendments
  - Submit application as early as possible
    - Do not submit through the SCP Portal
  - If renewing or amending, ensure compliance with existing permit terms and conditions
  - Co-listed species: forward federal take permit upon receipt, prefer issuing MOU afterward
- Submit questions to:

  WildlifeResearchPermits@wildlife.ca.gov



California Department of **Fish and Wildlife**

Home Fishing Hunting

Applying for a CESA MOU

CESA MOUs are issued by the respective CDFW branches (i.e., Wildlife Branch and Fisheries Branch) depending on the taxonomic group. CDFW Wildlife Branch issues CESA MOUs for CESA-listed amphibians, birds, mammals, and reptiles. There is no fee or application form needed however, the following information may be sent via email to either the primary CESA MOU contact listed below or the designated Wildlife Branch biologist.

- Cover letter from the Principal Investigator with the request
- Resume or Curriculum vitae, and a statement of qualifications
- Letters of recommendations
- Scientific research proposal
  - Title of the research and the Principal Investigator's contact information
  - Introduction (background and justification)
  - Study Area
  - Methods and Procedures
  - Schedule of Work
  - Literature Citations
  - List of Authorized Individuals
- Copies of all other permits (or permit applications) related to the project

CESA MOU Contact Information

Justin Garcia
CDFW Wildlife Branch
Justin.Garcia@wildlife.ca.gov
(916) 207-4957

Take Aways

- FYLF ESA and CESA protection is consistent in CA except for the Northern Sierra clade/DPS
- Take and possession of FYLF always require a permit from CDFW regardless of location in CA
- The purpose of the take or possession and the regulatory status of the species determine the permit type required
  - Multiple pathways for movement out of harm's way
  - Scientific research, education, propagation, and management
    - SCP for North Coast clade/non-listed species
    - MOU for other clades/CESA and fully protected species

Photo credit: Wes Stokes, CDFW